

I. Request

1. The Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPD) to issue an opinion on the Draft Decree-Law 121/XXIV/2024, which transposes Directive (EU) 2019/997 and Delegated Directive (EU) 2024/1986, which creates a provisional and uniform title of the European Union; as well as establishes the conditions and procedures for unrepresented citizens in third countries to obtain a provisional travel document of the European Union (EU TVP) and creates a uniform model for this document.
2. The CNPD issues an opinion within the scope of its powers and competencies as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of no. 1 of article 57, in conjunction with paragraph b) of no. 3 of article 58, and with no. 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, in no. 2 of article 4, and in paragraph a) of no. 1 of article 6, all of Law no. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II. Analysis

3. The Draft Decree-Law submitted for the CNPD's consideration (hereinafter Draft) has, as its object, under the terms of article 3: a) to transpose into the internal legal order Directive (EU) 2019/997, which creates a provisional travel document and repeals Decision 96/409/CFSP, of June 25, 1966; b) to transpose into the internal legal order Delegated Directive (EU) 2024/1986 of the Commission, of May 6, 2024, which amends the previous directive regarding the optical reading zone of the provisional travel document of the European Union; and c) to establish the conditions and procedures for unrepresented citizens in third countries to obtain a provisional travel document of the European Union (EU TVP) and create a uniform model for this document.
4. Regarding points a) and c) of the previous number, the CNPD has already had the opportunity to express its opinion through Opinion/2023/64, of July 4, 2023, on an earlier version of the document submitted by the Ministry of Foreign Affairs.
5. Comparing the text of that original Proposal and the text now under analysis, it is noted that although the wording of some provisions has been altered, this does not correspond to a normative change, so, in this respect, the CNPD refers to the aforementioned opinion, to which the following observations are added.

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6. Article 11 of the Proposal is titled "Personal Data Protection." It states (no. 1) that "The personal data processed for the purposes of this decree-law, including the facial image or photograph of the applicant referred to in no. 2 of article 4, may only be used to verify the identity of the applicant, under the procedure provided for in article 4, to print the uniform EU TVP sticker and to facilitate the applicant's travel."
7. However, it is stated in no. 11 of article 5 that the entity issuing the EU TVP must send a copy or scan to the Member State of the applicant's nationality. Considering that, under paragraph 2) of article 4, "disclosure by transmission" constitutes an operation of processing personal data, it must be concluded that the personal data collected within the scope of the purposes provided for in the Proposal will also be processed for the purposes of that transmission, which should be reflected in the provision of no. 1 of article 11.
8. In no. 3 of the same article, it is provided that "the applicant in favor of whom an EU TVP is issued has the right to verify the personal data contained therein and, if applicable, request that corrections be made through the issuance of a new document, under the terms of articles 15 and 16 of Regulation (EU) 2016/679, of April 27, 2016" (*italicized ours*). To eliminate any interpretative misunderstandings, the CNPD suggests that the terminology of the GDPR be used, explicitly stating the rights of access

and rectification, instead of the right to verification and correction.

9. Still in article 11, retention periods for data for the various processing operations provided for are mentioned.

10. Thus, it is determined that under no circumstances may the data be retained by the authority providing assistance or by the Ministry of Foreign Affairs for a period exceeding 180 days, or by the Member State of nationality for a period exceeding two years, under applicable EU law (no. 6), and that the authority providing assistance or the Ministry of Foreign Affairs ensures the secure destruction of all returned EU TVPs and all copies related to them as soon as possible and "within a maximum period of one year" (no. 8).

11. Furthermore, upon verifying the provisions of the Directive in this regard, it is noted that it establishes that such data must be destroyed as soon as possible, but does not refer to the provision of a maximum time, which constitutes an innovation of the Portuguese legislator.

1 By mistake, the reference to no. 2 of article 4 is indicated. However, due to the insertion of the new article 4 (consular cooperation), no. 2 of article 5 should be indicated.

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12. Now, the underlying rationale for establishing such an extended maximum period for the destruction of EU travel documents (TVP) and the personal data contained therein, compared to the 180 days provided for the destruction of other data, is not understood, nor is its necessity, thus that period should be reconsidered.

13. Regarding the changes introduced by the Delegated Directive, these are limited to the alteration of the uppercase letters appearing as the first characters of the optical reading zone to designate the document as a travel title, which does not conflict with the matter of data protection.

III. Conclusion

14. The CNPD decides to maintain the content of Opinion/2023/64, to which the following recommendations are added:

- a. To include, in the provision of paragraph 21 of Article 11, the transmission of a copy of the EU travel document (RVP) for the purposes of the use of personal data;
- b. To change the terminology used regarding data protection in paragraph 3 of Article 11;
- c. To review the retention period of personal data, particularly regarding the period for the destruction of the returned EU travel documents by the authority providing assistance or the Ministry of Foreign Affairs (paragraph 8 of Article 11).

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